

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Samuel Ross	Team: Squad #01	CCRB Case #: 201608214	☒ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☒ O.L.	☐ Injury
Incident Date(s) Sunday, 09/18/2016 7:09 AM	Location of Incident: Southwest corner of § 87(2)(b)		18 Mo. SOL 3/18/2018		Precinct: 67
Date/Time CV Reported Tue, 09/20/2016 8:23 AM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Mon, 09/26/2016 11:08 AM		

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Vito Polisen	18478	951070	067 PCT
2. Officers			

Officer(s)	Allegation	Investigator Recommendation
A . Officers	Abuse: Officers stopped the vehicle in which § 87(2)(b) was an occupant.	A . Alleged Victim Uncooperative
B . POM Vito Polisen	Discourtesy: Police Officer Vito Polisen spoke discourteously to § 87(2)(b)	B . Alleged Victim Uncooperative
C . POM Vito Polisen	Abuse: Police Officer Vito Polisen threatened § 87(2)(b) with the use of force.	C . Alleged Victim Uncooperative
D . POM Vito Polisen	Force: Police Officer Vito Polisen used a taser against § 87(2)(b)	D . Alleged Victim Uncooperative
E . POM Vito Polisen	Off. Language: Police Officer Vito Polisen made remarks to § 87(2)(b) based upon race.	E . Alleged Victim Uncooperative

Case Summary

On September 20, 2016 § 87(2)(b) filed this complaint with IAB on behalf of § 87(2)(b) his acquaintance, generating original log #16-33327. The log was then forwarded to the CCRB, where it was received on September 26, 2016. On the morning of Sunday, September 18, 2016, § 87(2)(b) was driving a private taxi. At approximately 7:09 AM, officers in an RMP stopped § 87(2)(b)'s vehicle at the intersection of § 87(2)(b) and § 87(2)(b) (**Allegation A**). An officer told § 87(2)(b) that he needed to wait at the scene because he was suspected to have been involved in an earlier "road rage" incident. § 87(2)(b) waited until an individual whom he had never seen before arrived on scene. Several more officers also arrived on scene. PO Vito Polisenio of the 67th Precinct informed § 87(2)(b) that he had been identified as the perpetrator in question and was under arrest. § 87(2)(b) maintained that he had never seen the victim before. § 87(2)(b) asked PO Polisenio to summon a captain to the scene, and PO Polisenio allegedly said, "You're not speaking to no fucking captain" (**Allegation B**). PO Polisenio then allegedly said, "Put your hands behind your fucking back" (also **Allegation B**). PO Polisenio placed § 87(2)(b) in handcuffs. § 87(2)(b) asked, "Why are you doing this to me?" PO Polisenio allegedly told § 87(2)(b) that he would shoot him (**Allegation C**). § 87(2)(b) did not know if PO Polisenio was threatening to shoot him with a Taser or with a firearm. PO Polisenio then used a Taser against § 87(2)(b) (**Allegation D**). § 87(2)(b) lost consciousness. When he regained consciousness he was lying on the ground. He asked, "Why did you do that to me?" PO Polisenio allegedly responded, "That's what we do to animals" (**Allegation E**). § 87(2)(b) was then arrested for § 87(2)(b) § 87(2)(b) § 87(2)(b).

On September 27, 2016 the undersigned reached § 87(2)(b) via telephone. § 87(2)(b) stated that he did not witness the incident in question. Thereafter, also on September 27, 2016 the undersigned reached § 87(2)(b) via telephone. § 87(2)(b) confirmed his contact information. He also stated that he planned to file a civil lawsuit and wished to consult with his civil attorney prior to providing a statement to the CCRB. On September 29, 2016 a voicemail message was left for § 87(2)(b) and a "first please call" letter was sent. On October 3, 2016 the undersigned again reached § 87(2)(b) via telephone. He stated that he had spoken with his criminal attorney, who did not object to a CCRB investigation. However, § 87(2)(b) had yet to consult with his civil attorney. On October 5, 2016 the undersigned attempted to contact § 87(2)(b) his voicemail box was full and an SMS notification was sent via the voicemail system. Also on October 5, 2016, a "final please call" letter was sent. On October 7, 2016 a voicemail message was left in which the undersigned informed § 87(2)(b) that the CCRB cannot keep a complaint open indefinitely without a verified statement. On October 11, 2016 the undersigned reached § 87(2)(b) via telephone, and § 87(2)(b) scheduled an October 17, 2016 interview appointment. An automated SMS interview appointment reminder was sent to § 87(2)(b) on October 15, 2016. However, § 87(2)(b) did not appear at the CCRB for his scheduled October 17, 2016 interview appointment and he did not call to cancel or reschedule. On October 17, 2016 a voicemail message was left in which the undersigned established an October 19, 2016 deadline for § 87(2)(b) § 87(2)(b) to contact the undersigned and in which the undersigned informed § 87(2)(b) that if he did not contact the undersigned by that date, that the case would be closed. § 87(2)(g)

his report § 87(2)(b) has not contacted the undersigned. Therefore, it is recommended that this case be closed as **victim uncooperative**.

Squad: 1

Investigator:	_____	_____	_____
	Signature	Print	Date

Squad Leader:	_____	_____	_____
	Title/Signature	Print	Date

Reviewer:	_____	_____	_____
	Title/Signature	Print	Date